TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1293]

[Washington 01923]

WASHINGTON

RESERVING PUBLIC LANDS IN CONNECTION WITH SHERMAN CREEK GAME RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, the act of September 2, 1937 (50 Stat. 917; 16 U. S. C. 669-669i), and the act of March 10, 1934, as amended by the act of August 14, 1946 (48 Stat. 401; 60 Stat. 1080; 16 U. S. C. 661-666c), it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Washington are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral-leasing laws, and reserved under the jurisdiction of the Department of the Interior for use by the Department of Game of the State of Washington in connection with the Sherman Creek Game Range: *Provided*, That the timber resources on the lands shall be subject to management and disposal by the Bureau of Land Management, Department of the Interior, pursuant to applicable laws:

WILLAMETTE MERIDIAN

T. 36 N., R. 37 E.,
Sec. 15, NW¼NW¼, NW¼SW¼;
Sec. 17, NE¼, E½NW¼;
Sec. 29, S½SE¼;
Sec. 33, W½W½.

The areas described aggregate 560 acres.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

APRIL 24, 1956.

[F. R. Doc. 56-3342; Filed, Apr. 30, 1956; 8:45 a. m.]

[Public Land Order 1294]

[Misc. 215429]

MONTANA

REVOKING EXECUTIVE ORDERS NO. 1503 OF MARCH 23, 1912 AND NO. 2427 OF JULY 24, 1916, WHICH RESERVED PUBLIC LANDS FOR USE OF FOREST SERVICE AS ADMINISTRATIVE SITES

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Orders No. 1503 of March 23, 1912, and No. 2427 of July 24, 1916, which temporarily withdrew lands as hereinafter indicated, for use of the Forest Service, Department of Agriculture, as the Carney Administrative Site, and the Little Whitetail Administrative Site, respectively, in connection with the administration of the Deerlodge National Forest, are hereby revoked:

MONTANA PRINCIPAL MERIDIAN

Carney Administrative Site:
T. 2 S., R. 4 W.,
Sec. 6, E½E½ (lots 7, 8, 9, and 10).

The area described contains 159.06 acres.

MONTANA PRINCIPAL MERIDIAN

Little Whitetail Administrative Site:
T. 3 N., R. 4 W.,
Sec. 6, SE¼.

The area described contains 160 acres.

The lands in T. 2 S., R. 4 W., are located about 12 miles south of Whitehall, Montana. They are situated on the western slope of the Tobacco Root Mountains and are adjacent to the national forest boundary. The lands are rough in character with some very steep slopes and rocky ridges with little or no vegetative cover on the ridges. A small portion of the area has timber, which has no commercial value, and the remainder of the tract is rough grazing land. The land in T. 3 N., R. 4 W., contains a spring or waterhole used for watering livestock and is, therefore, included in and will remain in the withdrawal made by the Executive order of April 17, 1926 (Public Water Reserve No. 107).

No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any valid existing rights and the requirements of applicable law, the restored lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284 as amended), presented prior to 10:00 a. m. on May 30, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on August 29, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on August 29, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws and to location for metalliferous minerals. They will be open to location for non-metalliferous minerals under the United Staes mining laws beginning at 10 a. m. on August 29, 1956.

Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

The E½E½ (lots 7, 8, 9, and 10), sec. 6, T. 2 S., R. 4 W., is restored to entry by this order.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Billings, Montana.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

APRIL 24, 1956.

[F. R. Doc. 56-3343; Filed, Apr. 30, 1956; 8:46 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

Subchapter A—General Rules and Regulations

PART 141—FREIGHT SCHEDULES

INTERMEDIATE RULES TO BE USED ONLY WHERE ROUTING IS PROVIDED

At a session of the Interstate Commerce Commission, Division 2, held at its office in Washington, D. C., on the 18th day of April A. D. 1956.

It appearing that the matter of further postponing the effective date of the second paragraph of Rule 27 of Tariff Circular No. 20 (§ 141.27 (a)), now prescribed as June 10, 1956, has been given consideration, and the Interstate Commerce Commission by order dated April 18, 1956, postponed the effective date thereof from June 10, 1956, to June 10, 1959;

And it further appearing that proposed rule making under the Administrative Procedure Act (Title 5, Chapter 19, U. S. Code) is considered unnecessary in view of the nature and character of the change herein;